

**Court No. - 29**

**Case :-** WRIT - C No. - 60839 of 2016

**Petitioner :-** M/S Madhuvan Properties (P) Ltd.

**Respondent :-** Pashchimanchal Vidyut Vitran Nigam Limited And Another

**Counsel for Petitioner :-** Mayank Kumar Agrawal

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Tarun Agarwala,J.**

**Hon'ble Siddhartha Varma,J.**

Heard Sri Shashi Nandan, learned senior counsel assisted by Sri Mayank Kumar Agarwal, learned counsel for the petitioner and Sri Anshul Shinghal, Advocate holding brief Sri Chandan Agarwal, learned counsel for the respondent- Electricity Department.

An inspection was done in the petitioner's premises on the 15th of September 2016. During the course of the inspection it was found that the meter was carbonized and the meter was required to be tested. Subsequently, the meter was tested by the Memory Recording Instrument (MRI), based on which the department came to the conclusion that the meter was running slow and only 50% of the energy consumed was being recorded.

Based on this test, a notice dated 25.10.2016 was issued by which the respondent directed the petitioner to pay a sum of Rs.1,03,69,390/- towards electricity dues for the period 3.11.2012 to 15.09.2016 i.e. till the date of inspection.

The petitioner being aggrieved by the said demand has filed the present writ petition and contends that after the filing of the writ

petition his electricity was disconnected on 20.12.2016.

Clause 5.6 of the Electricity Supply Code deals with defective meters. The testing of the meter is required to be done in the presence of the petitioner. Apparently, the same was not done. Further, opportunity is required to be given to the petitioner to file his objection, if any. We also find from Section 5.6 (c)(ii) that difference of the energy consumed can only be charged for the previous three months and the consumer could also give an option to pay the amount in instalments.

In the instant case, prima facie we find that recovery for more than two and a half years is being made. This could not be done. Matter requires consideration.

Sri Chandan Agarwal, learned counsel for the respondent will file a counter affidavit within three weeks.

List for admission thereafter.

In the meanwhile, the petitioner will deposit a sum of Rs. 15 lakh. Upon such a deposit being made, the electricity connection will be restored within 48 hours. This deposit will be subject to the result of the writ petition. If the amount is deposited the balance amount will not be recovered during the pendency of the petition.

**Order Date :-** 22.12.2016

vkj

(Siddhartha Varma,J.) (Tarun Agarwala,J.)

**Court No. - 1**

**Case :-** WRIT - C No. - 60839 of 2016

**Petitioner :-** M/S Madhuwan Properties (P) Ltd.

**Respondent :-** Pashchimanchal Vidyut Vitran Nigam Limited And Another

**Counsel for Petitioner :-** Mayank Kumar Agrawal

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Govind Mathur,J.**

**Hon'ble Ashok Kumar,J.**

None is present on behalf of the petitioner. It is noticed from the order sheet that on 27.10.2017 also the writ petition was passed over on account of the illness slip of Sri Mayank Kumar Agarwal, learned counsel for the petitioner.

Let this writ petition be listed in the next cause list.

Interim order dated 22.12.2016 shall remain in currency till then only.

**Order Date :-** 29.11.2017

Rameez

.

**(Ashok Kumar,J.) (Govind Mathur,J.)**

**Court No. - 21**

**Case :-** WRIT - C No. - 60839 of 2016

**Petitioner :-** M/S Madhuvan Properties (P) Ltd.

**Respondent :-** Pashchimanchal Vidyut Vitran Nigam Limited And Another

**Counsel for Petitioner :-** Mayank Kumar Agrawal

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Krishna Murari,J.**

**Hon'ble Ajay Bhanot,J.**

Passed over on the illness slip of Shri Chandan Agarwal, learned counsel for the respondents.

**Order Date :-** 3.1.2018

Sumaira

**Court No. - 40**

**Case :-** WRIT - C No. - 60839 of 2016

**Petitioner :-** M/S Madhuvan Properties (P) Ltd.

**Respondent :-** Pashchimanchal Vidyut Vitran Nigam Limited And  
Another

**Counsel for Petitioner :-** Mayank Kumar Agrawal

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Amreshwar Pratap Sahi,J.**

**Hon'ble Shashi Kant,J.**

Sri Mayank Kumar Agarwal, learned counsel for the petitioner has sent an illness slip today.

List this case in the ***next cause list.***

**Order Date :-** 9.5.2018

S.Chaurasia

**Court No. - 40**

**Case :-** WRIT - C No. - 60839 of 2016

**Petitioner :-** M/S Madhuvan Properties (P) Ltd.

**Respondent :-** Pashchimanchal Vidyut Vitran Nigam Limited  
And Another

**Counsel for Petitioner :-** Mayank Kumar Agrawal

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Amreshwar Pratap Sahi,J.**

**Hon'ble Shashi Kant,J.**

Sri Mayank Kumar Agarwal, learned counsel for the petitioner has sent his illness slip today.

List in the next cause list.

**Order Date :-** 30.5.2018

A. Verma

**Court No. - 40**

**Case :-** WRIT - C No. - 60839 of 2016

**Petitioner :-** M/S Madhuvan Properties P Ltd.

**Respondent :-** Pashchimanchal Vidyut Vitran Nigam Limited And Another

**Counsel for Petitioner :-** Mayank Kumar Agrawal

**Counsel for Respondent :-** Chandan Agarwal

**Hon'ble Mahesh Chandra Tripathi,J.**

**Hon'ble Prashant Kumar,J.**

List after two weeks showing the name of Sri Pranjal Mehrotra, learned counsel for the respondent-Corporation.

**Order Date :-** 7.8.2023

S.P.

**Chief Justice's Court**

**Case :-** WRIT - C No. - 60839 of 2016

**Petitioner :-** M/S Madhuvan Properties P Ltd.

**Respondent :-** Pashchimanchal Vidyut Vitran Nigam Limited And Another

**Counsel for Petitioner :-** Mayank Kumar Agrawal

**Counsel for Respondent :-** Chandan Agarwal,Pranjal Mehrotra

**Hon'ble Arun Bhansali,Chief Justice**

**Hon'ble Manoj Kumar Gupta,J.**

**Order on Withdrawal Application No. 4 of 2024**

1. The application seeks withdrawal of the writ petition as not pressed.
2. Application, being not opposed, is allowed.

**Order on Petition**

In view of the order passed in the withdrawal application, the petition is dismissed as not pressed.

**Order Date :-** 6.2.2024  
nd

(Manoj Kumar Gupta, J.)      (Arun Bhansali, CJ)